VENDOR SUPPLY AGREEMENT

This Vendor Supply Agreement ("Agreement") is entered into as of 1 January 2025 between ALPHA INDUSTRIES PRIVATE LIMITED, a company incorporated under the Companies Act 2013, having its registered office at 45 Industrial Area, Phase II, Pune 411057 ("Buyer"), and the vendor identified in Schedule A ("Vendor").

1. DEFINITIONS

1.1 "Goods" means the products described in Schedule A supplied by Vendor to Buyer.

1.2 "Delivery Date" means the date specified in each purchase order issued by Buyer.

1.3 "Specifications" means the technical requirements set out in Schedule B, as amended by Buyer from time to time at its sole discretion.

1.4 "Defective Goods" means any Goods that do not conform to the Specifications or are otherwise unfit for purpose as determined solely by Buyer.

2. PURCHASE ORDERS AND DELIVERY

2.1 Buyer shall issue purchase orders from time to time. Each purchase order shall constitute a binding obligation of Vendor upon issuance by Buyer.

2.2 Vendor shall deliver Goods on or before the Delivery Date. Time is of the essence. Buyer may reject any delivery that arrives after the Delivery Date without any obligation to pay for such Goods.

2.3 Buyer reserves the right to modify, suspend, or cancel any purchase order at any time without liability to Vendor.

3. PRICE AND PAYMENT

3.1 Buyer shall pay Vendor the prices set out in Schedule A within ninety (90) days of Buyer's acceptance of the Goods ("Payment Terms").

3.2 Buyer may set off against any amount owed to Vendor any amount that Vendor owes to Buyer, whether arising under this Agreement or otherwise.

3.3 Buyer may at any time and without notice to Vendor revise the prices set out in Schedule A. Vendor's continued supply of Goods shall constitute acceptance of the revised prices.

4. QUALITY AND INSPECTION

4.1 All Goods supplied under this Agreement shall conform to the Specifications and be free from defects in material and workmanship.

4.2 Buyer shall have the right to inspect Goods at Vendor's premises at any time during normal business hours upon 24 hours' notice, or without notice if Buyer reasonably suspects a quality issue.

4.3 Vendor shall, at Buyer's option, either replace Defective Goods or refund the full purchase price within seven (7) days of notification.

5. INTELLECTUAL PROPERTY

5.1 All intellectual property rights in any improvements, modifications, derivative works, or inventions created by Vendor in connection with the supply of Goods, whether or not specifically requested by Buyer, shall vest in Buyer absolutely and Vendor hereby assigns all such rights to Buyer with full title guarantee.

5.2 Vendor shall execute such documents and take such steps as Buyer may reasonably require to give effect to the assignment in Clause 5.1.

5.3 Vendor grants Buyer a perpetual, irrevocable, royalty-free licence to use any background intellectual property of Vendor that is incorporated into the Goods.

6. CONFIDENTIALITY

6.1 Vendor shall keep confidential all Confidential Information of Buyer. "Confidential Information" means all information disclosed by Buyer to Vendor in any form, including but not limited to technical data, trade secrets, know-how, business plans, and customer data.

6.2 Vendor shall not disclose Confidential Information to any third party without Buyer's prior written consent.

6.3 Vendor shall, at the end of this Agreement or upon Buyer's request, immediately return or destroy all Confidential Information.

6.4 This obligation of confidentiality shall survive termination of this Agreement for a period of ten (10) years.

7. INDEMNIFICATION

7.1 Vendor shall indemnify, defend, and hold harmless Buyer, its affiliates, officers, directors, employees, and agents from and against any and all claims, damages, losses, costs, and expenses (including reasonable legal fees) arising out of or in connection with: (a) any breach of this Agreement by Vendor; (b) any negligence or wilful misconduct of Vendor; (c) any defect in the Goods; or (d) any claim that the Goods infringe any third-party intellectual property rights.

7.2 Vendor shall maintain, at its own cost, adequate insurance coverage including product liability insurance with a minimum cover of INR 5,00,00,000 (Rupees Five Crore) per occurrence.

8. LIMITATION OF LIABILITY

8.1 Notwithstanding any other provision of this Agreement, Buyer's total aggregate liability to Vendor under or in connection with this Agreement, whether arising in contract, tort (including negligence), breach of statutory duty, or otherwise, shall not exceed INR 50,000 (Rupees Fifty Thousand).

8.2 Buyer shall not be liable to Vendor for any indirect, consequential, special, incidental, or punitive damages, including loss of profit, loss of revenue, loss of business, or loss of anticipated savings, however caused and whether or not Buyer was advised of the possibility of such losses.

8.3 Nothing in this Clause 8 shall limit Vendor's liability to Buyer.

9. TERMINATION

9.1 Buyer may terminate this Agreement at any time and for any reason by giving Vendor two (2) days' written notice.

9.2 Buyer may terminate this Agreement immediately without notice if Vendor breaches any provision of this Agreement or becomes insolvent.

9.3 Upon termination, Vendor shall immediately cease supplying Goods and deliver to Buyer all materials, tooling, and dies provided by Buyer.

10. GOVERNING LAW AND DISPUTES

10.1 This Agreement shall be governed by and construed in accordance with the laws of England and Wales.

10.2 Any dispute arising under this Agreement shall be subject to the exclusive jurisdiction of the courts of England and Wales.

11. NON-COMPETE

11.1 During the term of this Agreement and for a period of three (3) years thereafter, Vendor shall not, directly or indirectly, supply, manufacture, or distribute products of the type described in Schedule A to any of Buyer's competitors, as notified by Buyer from time to time.

11.2 Vendor shall not solicit, employ, or engage any employee or contractor of Buyer for a period of two (2) years after termination of this Agreement.

12. AUTOMATIC RENEWAL

12.1 This Agreement shall automatically renew for successive one (1) year periods unless either party provides written notice of non-renewal at least ninety (90) days before the end of the then-current term.

12.2 For the avoidance of doubt, Vendor's failure to give timely notice shall result in automatic renewal on the same terms.

13. GENERAL

13.1 This Agreement constitutes the entire agreement between the parties relating to its subject matter and supersedes all prior agreements.

13.2 Buyer may assign this Agreement without Vendor's consent. Vendor may not assign this Agreement without Buyer's prior written consent.

13.3 Buyer may amend this Agreement at any time by notifying Vendor in writing. Vendor's continued supply of Goods constitutes acceptance of the amendment.

SCHEDULE A — VENDOR AND GOODS DETAILS

Vendor Name: _____

Vendor Address: _____

Goods Description: _____

Unit Price (INR): _____